

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Team # 4	CCRB Case #: 201301645	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 02/14/2013 10:25 AM, Friday, 02/15/2013 12:00 AM, Saturday, 02/16/2013 12:00 AM	Location of Incident: § 87(2)(b) 83rd Precinct stationhouse; en route to Brooklyn Central Booking	18 Mo. SOL 8/14/2014	Precinct: 81		
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/13/2013 5:04 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An Officer			
2. POM Derek Almeida	25236	946426	083 PCT
3. POM Steve Fernandez	20341	926825	083 PCT
4. POM Anastasi Tsakos	17563	943896	083 PCT
5. POM Thomas Denicker	16769	950310	083 PCT
6. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Marco Artale	25158	929656	083 PCT
2. SGT Anna Serrano	03572	916675	083 PCT
3. POM Peter Rubin	05057	933299	083 PCT
4. SGT Jennifer Lavelle	00235	933921	083 PCT
5. SGT Annalisa Rosiak	01043	921256	083 PCT
6. POF Sonia Yi	06593	939724	081 DET

Officer(s)	Allegation	Investigator Recommendation
A . POM Steve Fernandez	Force: On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Steve Fernandez pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Derek Almeida	Force: On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Derek Almeida struck § 87(2)(b) with an asp.	B . Unfounded
C . POM Steve Fernandez	Force: On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Steve Fernandez struck § 87(2)(b) with a gun.	C . Unfounded
D . An Officer	Discourtesy: On February 15, 2013, at the 83rd Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . An Officer	Abuse: On February 15, 2013, at the 83rd Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.	E . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
F . POM Anastasi Tsakos	Force: On February 15, 2013, at the 83rd Precinct stationhouse, PO Anastasi Tsakos used physical force against § 87(2)(b)	F . Unfounded
G . POM Thomas Denicker	Force: On February 15, 2013, at the 83rd Precinct stationhouse, PO Thomas Denicker used physical force against § 87(2)(b)	G . Unfounded
H . Officers	Force: On February 15, 2013, at the 83rd Precinct stationhouse, officers used physical force against § 87(2)(b)	H . Unfounded
I . POM Anastasi Tsakos	Force: On February 15, 2013, en route to Brooklyn Central Booking, PO Anastasi Tsakos used physical force against § 87(2)(b)	I . Unsubstantiated

Case Summary

On February 14, 2013, Sgt. Christopher Moran of the 83rd Precinct called the IAB Command Center to file this complaint. On March 13, 2013 the CCRB received the complaint, IAB original log #13-6817 (encl. 6a-7b). On February 14, 2013, at approximately 10:25AM, § 87(2)(b) was arrested in front of § 87(2)(b) in Brooklyn for reckless endangerment in the second degree. The following allegations resulted:

- **Allegation A: Force—On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Steve Fernandez pointed his gun at § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation A be Exonerated.

- **Allegation B: Force—On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Derek Almeida struck § 87(2)(b) with an asp.**
- **Allegation C: Force—On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Steve Fernandez struck § 87(2)(b) with a gun.**

§ 87(2)(g)

It is therefore recommended that Allegations B and C be closed as Unfounded.

- **Allegation D: Discourtesy-- On February 15, 2013, at the 83rd Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)**
- **Allegation E: Abuse of Authority—On February 15, 2013, at the 83rd Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.**

§ 87(2)(g)

It is therefore recommended that Allegations D and E be closed as Officer(s) Unidentified.

- **Allegation F: Force—On February 15, 2013, at the 83rd Precinct stationhouse, PO Anastasi Tsakos used physical force against § 87(2)(b)**
- **Allegation G: Force—On February 15, 2013, at the 83rd Precinct stationhouse, PO Thomas Denicker used physical force against § 87(2)(b)**
- **Allegation H: Force—On February 15, 2013, at the 83rd Precinct stationhouse, officers used physical force against § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegations F, G, and H be closed as Unfounded.

- **Allegation I: Force—On February 15, 2013, en route to Brooklyn Central Booking, PO Anastasi Tsakos used physical force against § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation I be closed as Unsubstantiated.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black male § 87(2)(b) with brown eyes and

black hair, and is § 87(2)(b).

Statements to Medical Personnel

§ 87(2)(a) PHL § 18(6)

Arrest photograph (encl. 28a)

In his arrest photograph, § 87(2)(b) appears to have no injuries.

Statements to IAB (encl. 6b)

As noted in the IAB referral form, Sgt. Christopher Moran of the 83rd Precinct reported on February 14, 2013, that § 87(2)(b) was stating that the laceration [to § 87(2)(b)'s hand] came from being hit with a gun during the course of his arrest. Det. John Becerra of IAB stated on February 15, 2013, that § 87(2)(b) reported that a police officer had a gun in his hand when he tried to hit § 87(2)(b). § 87(2)(b) blocked the gun, and then he grabbed the officer's gun. When the officer pulled the gun back, § 87(2)(b) received a laceration.

CCRB Testimony

§ 87(2)(b) was interviewed by the CCRB at Rikers Island on April 29, 2013 (encl. 8a-e). On February 14, 2013, at approximately 10:25AM, § 87(2)(b) drove a 2011 blue Range Rover towards Bobby's Sneakers store in Brooklyn, which is across the street from the 83rd Precinct stationhouse. § 87(2)(b)'s friend, § 87(2)(b) rode in the passenger's seat. § 87(2)(b) noticed an unmarked burgundy car that appeared to be following him, and so § 87(2)(b) started making random turns. The burgundy car continued to follow § 87(2)(b). § 87(2)(b) did not know that the car held police officers. It never turned on any lights, identified itself as a police vehicle, or indicated to § 87(2)(b) to pull over. § 87(2)(b) lost control of his vehicle and he crashed into a gate near the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) did not sustain any injuries as a result of the crash. § 87(2)(b) got out of the car and ran, and § 87(2)(b) remained in the car. § 87(2)(b) did not carry anything with him when he exited the vehicle. § 87(2)(b) ran because he was scared; he had previously been shot, and he did not know who was chasing him or why. As § 87(2)(b) ran, he turned his head around and noticed that the two back doors of the burgundy vehicle were open, and two uniformed officers, identified by the investigation as PO Steve Fernandez and PO Derek Almeida, both from the 83rd Precinct, were running towards him. PO Almeida was described as a light-skinned Hispanic male, 5'10" tall, slim, in his early 30s, and § 87(2)(b) believed PO Almeida was his arresting officer.

PO Fernandez was described as a white male, 5'10" tall, chubby, and in his early 30s.

Once § 87(2)(b) noticed that it was the police, he stopped running and put his hands in the air. § 87(2)(b) was in front of a residential gate that led into a small yard. PO Fernandez pulled out his gun, pointed it at § 87(2)(b)'s head and told § 87(2)(b) to get on the ground. § 87(2)(b) complied with the order, placing his stomach on the ground and outstretching his arms and legs.

PO Almeida approached § 87(2)(b) and hit § 87(2)(b) with an asp twice on his back. § 87(2)(b) rolled over and got back up on his feet. § 87(2)(b) began to yell for help and ran into a residential yard, but there was nowhere to go. § 87(2)(b) took approximately six steps towards a white wooden gate that was approximately 7-8 feet tall. PO Fernandez and PO Almeida pursued § 87(2)(b) into the yard.

PO Fernandez still had his gun drawn and attempted to strike § 87(2)(b) in the head with the butt of his gun. PO Fernandez used a chopping motion, but § 87(2)(b) blocked the blow to his head by grabbing the gun with his right hand. PO Fernandez pulled the gun away from § 87(2)(b)'s grasp. PO Almeida and PO Fernandez pulled § 87(2)(b) to the ground, and PO Almeida placed him in handcuffs.

PO Almeida and PO Fernandez led § 87(2)(b) back to the scene of the car crash, and § 87(2)(b) was placed in a red van. § 87(2)(b) was already in the van when § 87(2)(b) was placed in the back. § 87(2)(b) told § 87(2)(b) that he was bleeding. It was at this point that § 87(2)(b) noticed that his right hand was badly cut, and that he was bleeding. § 87(2)(b) stated that he did not hurt himself in any way, and had not sustained injuries prior to physically interacting with PO Almeida and PO Fernandez. § 87(2)(b) was not certain if he received the laceration to his hand from the gun or from the asp, although he thinks it was from blocking the gun. § 87(2)(b) did not notice any blood or injuries prior to being struck by the gun.

The van drove § 87(2)(b) to the 83rd Precinct. At the 83rd Precinct, § 87(2)(b) could not go into the holding cell because there was too much blood emanating from his hand. § 87(2)(b) was taken to § 87(2)(b) where he received 15-20 stitches on his right hand. After being treated, § 87(2)(b) was taken back to the 83rd Precinct.

In the holding cell of the 83rd Precinct on the morning of February 15th, 2013, § 87(2)(b) was screaming for medical attention. § 87(2)(b) was in pain from the stitches that he feared were infected. At some point that morning, five unidentified uniformed police officers, PO1-PO5, entered the holding cell. PO1 was a white female, who appeared to be a sergeant, 5'6" tall, slim, with long blonde hair (PO1 was at the desk on February 16, 2013, as well). PO2, identified by the investigation as PO Anastasi Tsakos of the 83rd Precinct, was described as a white male, 6'0" tall, slim, with long hair, and in his mid to late 30s. PO3, identified by the investigation as PO Thomas Denicker of the 83rd Precinct, was described as a white male, 6'0" tall, with a slim build, with short hair, and in his mid to late 30s. PO4 and PO5 were males, but § 87(2)(b) could not recall anything further about their descriptions.

§ 87(2)(b) believes there was a prisoner in the cell with him when PO1-PO5 entered, but he does not remember who. The officers instructed § 87(2)(b) to stop yelling and to get his hands off the bars. § 87(2)(b) responded that he could not wait any longer for medical attention. One of these officers (PO1-PO5) said, "Fuck you," but § 87(2)(b) did not recall which one.

PO1 threatened to use the Taser gun against § 87(2)(b). PO Denicker, PO Tsakos, PO4, and PO5 grabbed § 87(2)(b)'s arms, but § 87(2)(b) pushed their hands away. PO Denicker, PO Tsakos, PO4, and PO5 brought § 87(2)(b) to the ground. They struggled on the ground for approximately four minutes. PO Denicker, PO Tsakos, PO4, and PO5 grabbed § 87(2)(b)'s arms and legs. § 87(2)(b) was resisting, moving his shoulders and legs. PO Denicker, PO Tsakos, PO4, and PO5 kicked and kned § 87(2)(b) on his back while he was lying on the ground. § 87(2)(b) did not recall who kicked him or how many times, because § 87(2)(b) was

“too hyper” to pay attention.

At some point during the altercation in the holding cell, the stitches in § 87(2)(b)'s hand reopened. § 87(2)(b) also received a gash on his head, bruises on his back, and his arms were swollen. § 87(2)(b) did not know how specifically he received each injury, but he knows he received them as a result of the struggle in the holding cell. § 87(2)(b) was handcuffed and taken to Brooklyn Central Booking in an RMP by PO Denicker and PO Tsakos.

The driver of the RMP, PO Tsakos, stopped the vehicle at § 87(2)(b) and § 87(2)(b) in Brooklyn, around 3:00PM. § 87(2)(b) had been handcuffed in the back seat with his legs shackled, lying on his stomach, and he was screaming. § 87(2)(b) was banging his head against something and “going crazy.” PO Tsakos opened the door and punched § 87(2)(b) two times in the head. The passenger of the RMP, PO Denicker, told PO Tsakos to stop, and PO Tsakos did. PO Tsakos got back in the car and proceeded to Brooklyn Central Booking. From Brooklyn Central Booking, § 87(2)(b) was transported to the hospital, and then back to Brooklyn Central Booking.

Witness: § 87(2)(b)

- § 87(2)(b) is a black male § 87(2)(b), with brown eyes and black hair, and is § 87(2)(b).

CCRB Testimony:

§ 87(2)(b) provided a telephone statement to the CCRB on May 22, 2013 (encl. 9a). § 87(2)(b) agreed to call to schedule an in-person interview at the CCRB by May 24, 2013, but § 87(2)(b) never called the CCRB. § 87(2)(b) reported that on the date of the incident, § 87(2)(b) was driving and § 87(2)(b) was in the passenger's seat. The two men noticed a car following them, and after several blocks, the car that had been following them turned on lights and sirens. § 87(2)(b) contended that neither of them had done anything wrong and no traffic infractions had been made. At this point, § 87(2)(b) and § 87(2)(b) knew that it was police.

§ 87(2)(b) did not comment on what happened once he and § 87(2)(b) realized that it was police. He said that their vehicle came to a stop when it crashed into a house gate. § 87(2)(b) got out of the vehicle and ran while § 87(2)(b) remained inside of the vehicle.

§ 87(2)(b) was ordered to get on the ground, and he complied. He did not see § 87(2)(b) because he was on the ground. By the time § 87(2)(b) stood up, § 87(2)(b) was walking back towards him, handcuffed and bloody. § 87(2)(b) was bleeding from his hand. § 87(2)(b) could not remember the names of the officers who apprehended § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) rode in the same van to the 83rd Precinct stationhouse. They did not talk about how § 87(2)(b) sustained the injury. § 87(2)(b) did not see how § 87(2)(b) sustained the injury to his hand.

Witness: ANONYMOUS

CCRB Testimony:

On August 29, 2013, a witness provided an in-person statement to the CCRB in the vicinity of § 87(2)(b) in Brooklyn, but the witness wished to remain anonymous (encl. 10a). The witness reported that on February 14, 2013, at approximately 10:25AM, a man, identified via the investigation as § 87(2)(b) came running from § 87(2)(b) onto § 87(2)(b). § 87(2)(b) jumped over a fence with "knobs sticking up." Two uniformed police officers who were described as white males, identified by the investigation as PO Derek Almeida and PO Steve Fernandez, followed closely behind § 87(2)(b). When § 87(2)(b) jumped over the fence, he injured himself, although the witness did not observe any injuries to § 87(2)(b).

The witness observed § 87(2)(b) awkwardly tumble over the fence, and it appeared as though § 87(2)(b) had injured himself. PO Fernandez and PO Almeida later told the witness that § 87(2)(b) injured his hand jumping over the fence.

§ 87(2)(b) tried to jump over a second fence which was taller and wooden. PO Fernandez pointed his gun at § 87(2)(b). PO Fernandez and PO Almeida told § 87(2)(b) to stop and get down. § 87(2)(b) complied, and got down on his stomach. PO Almeida placed § 87(2)(b) in handcuffs and pulled him up to his feet. PO Almeida and PO Fernandez walked § 87(2)(b) back to § 87(2)(b) towards § 87(2)(b).

Neither PO Fernandez nor PO Almeida hit § 87(2)(b) or "anything like that." Both PO Fernandez and PO Almeida were "pleasant." PO Almeida and PO Fernandez asked § 87(2)(b) why he ran, but § 87(2)(b) did not respond. Aside from placing § 87(2)(b) in handcuffs, the witness did not see any officer make physical contact with § 87(2)(b). No officer tackled § 87(2)(b) to the ground. Neither officer drew their asp or used it against § 87(2)(b).

For the entirety of the witness's observations, the witness was on an outdoor, uncovered porch which is directly next door, approximately 5 feet away, from the scene of the arrest.

NYPD Statements:

Subject Officer: PO DEREK ALMEIDA

- *PO Almeida is a Hispanic male who stands § 87(2)(b), with brown eyes, black hair, and is § 87(2)(b).*
- *On February 14, 2013, PO Almeida worked 7:00AM until 3:35PM. SNEU with PO Steve Fernandez and PO Sonia Yi. Unmarked burgundy Ford sedan.*

Memo book: (encl. 11a-g)

PO Almeida's memo book indicates that on February 14, 2013, at 10:25AM, § 87(2)(b) and § 87(2)(b) were placed under arrest at the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) provided a false name, § 87(2)(b), and is the name PO Almeida uses while referring to § 87(2)(b). Strip searches of § 87(2)(b) and § 87(2)(b) were conducted at the stationhouse with negative results. § 87(2)(b) was charged with reckless endangerment. § 87(2)(b) was treated at § 87(2)(b) for a laceration to the hand which was sustained while being arrested, ACR # § 87(2)(b).

Arrest report/UF61 regarding § 87(2)(b) (encl. 12a-13c)

The arrest report and UF61, which were prepared by PO Almeida, stated that on February 14, 2013, in front of § 87(2)(b) in Brooklyn, § 87(2)(b) was observed operating a motor vehicle, recklessly disobeying multiple traffic signals and devices. § 87(2)(b) did refuse to stop his vehicle upon police request and did strike another motor vehicle once and left the scene of the accident. § 87(2)(b) drove on the sidewalk, creating a hazardous condition to himself and other pedestrians. § 87(2)(b) did strike gates of § 87(2)(b) and § 87(2)(b), causing damage exceeding \$250."

Arrest report regarding § 87(2)(b) (encl. 14a-c)

§ 87(2)(a) 160.50

CCRB Testimony:

PO Almeida was interviewed at the CCRB on May 15, 2013 (encl. 15a-c). On February 14,

2013, at approximately 10:25AM, PO Almeida was driving an unmarked police vehicle, with PO Fernandez in the passenger's seat, and PO Yi in the back. PO Almeida observed § 87(2)(b) driving a Range Rover with passenger § 87(2)(b) drove through a red light and collided with a black Lexus at the intersection of § 87(2)(b) and § 87(2)(b) and continued driving. § 87(2)(b) drove on the sidewalk, causing damage to the concrete (encl. 5b). § 87(2)(b) then struck the front gate of a home (encl. 5a,c), bringing the vehicle to a halt. PO Almeida put his car in park a few feet away from § 87(2)(b)'s vehicle.

§ 87(2)(b) exited the vehicle and began to run on foot towards § 87(2)(b). PO Almeida, PO Fernandez, and PO Yi all exited their vehicle. PO Almeida did not draw his weapon, nor did he see any other officer draw their weapon. PO Almeida and PO Fernandez pursued § 87(2)(b) on foot while PO Yi apprehended § 87(2)(b). PO Almeida was telling § 87(2)(b) to stop, but § 87(2)(b) continued to run. § 87(2)(b) jumped over an iron fence to enter the front yard of a residential building. The iron fence had sharp spikes (encl. 5d), and in the process of jumping over it, § 87(2)(b) sustained a laceration to his hand. PO Almeida did not recall which hand, but he observed § 87(2)(b) grasp the spike and put all his weight on it to jump over the fence. PO Almeida did not observe an injury to § 87(2)(b) at this time.

§ 87(2)(b) proceeded on foot, and made it to a taller wooden fence. § 87(2)(b)'s laceration caused blood to get on and stain the wooden fence (encl. 5d). § 87(2)(b) was attempting to climb over this fence when PO Almeida caught up with him. § 87(2)(b) could not pull himself over the wooden fence and so was trapped. § 87(2)(b) appeared to give up in his attempt to flee—he stopped running, stopped trying to climb over the fence, and kneeled down by the fence. PO Almeida instructed § 87(2)(b) to place his hands behind his back, and § 87(2)(b) complied. PO Fernandez caught up and stood next to PO Almeida. PO Almeida placed § 87(2)(b) in handcuffs. § 87(2)(b) did not resist being handcuffed, physically or verbally.

At no point during § 87(2)(b)'s apprehension was physical force used to bring him to the ground or place him in handcuffs. At no point during the incident did either PO Almeida or PO Fernandez draw their asp, nor did either officer strike § 87(2)(b) with an asp. While apprehending § 87(2)(b) PO Almeida did not have anything in his hands. Other than placing § 87(2)(b)'s hands in handcuffs, PO Almeida did not make any physical contact with § 87(2)(b)'s hands. At no point during the incident did PO Almeida point his gun at § 87(2)(b)'s head, nor was he aware of any other officer doing so.

After § 87(2)(b) was placed in handcuffs he began cursing and asked PO Almeida why he pistol-whipped him. PO Almeida said, "I never pistol-whipped you." § 87(2)(b) was transported to the precinct stationhouse in an RMP. Back at the precinct, § 87(2)(b) told the desk sergeant that PO Almeida had struck him with a pistol. Almost immediately upon arriving at the stationhouse, EMS was called, and § 87(2)(b) was escorted to the hospital. Once there, § 87(2)(b) received several stitches on the laceration to his right hand.

PO Almeida did not interact with § 87(2)(b) on February 15, 2013. PO Almeida saw § 87(2)(b) on February 15, 2013, although PO Almeida did not recall exactly when. § 87(2)(b) was screaming, and throwing his body against the cell. PO Almeida did not say anything to § 87(2)(b) at this time. PO Almeida did not see any officer interact with § 87(2)(b) nor did he recall who was at the desk that day. PO Almeida said that there are no blonde female officers that he is aware of that work at the 83rd Precinct. PO Almeida said there are no blonde female supervisors, and no female lieutenants at the 83rd Precinct.

Subject Officer: PO STEVE FERNANDEZ

- PO Fernandez is a Hispanic male § 87(2)(b) with black hair, brown eyes, and is § 87(2)(b).
- On February 14, 2013, PO Fernandez worked in uniform from 7:00AM until 3:35PM, with

PO Derek Almeida, PO Sonia Yi, and Sgt. Christopher Moran on a SNEU team. They were assigned an unmarked maroon Ford Taurus.

- *On February 15, 2013, PO Fernandez worked in uniform from 7:00AM until 3:35PM with PO Sonia Yi. They were assigned to SNEU and to an unmarked maroon Ford Taurus.*

Memo book: (encl. 16a-c)

PO Fernandez's memo book indicates that on February 14, 2013, at 10:20 AM, there was a foot pursuit in regards to a vehicle fleeing the scene of an accident. 10:25AM, § 87(2)(b) was apprehended in front of § 87(2)(b) in Brooklyn. § 87(2)(b) suffered a laceration to his hand by jumping over a spiked iron fence. § 87(2)(b) was transferred to the 83rd Precinct stationhouse for arrest processing and medical attention. On February 15, 2013, PO Fernandez was present for duty at 7:00AM and was assigned to SNEU. At 8:50AM, a sergeant signed the memo book. At 3:35PM, PO Fernandez went end of tour.

CCRB Testimony:

PO Steve Fernandez was interviewed at the CCRB on July 18, 2013 (encl. 17a-c). On February 14, 2013, at approximately 10:25AM, PO Steve Fernandez was working SNEU in an unmarked maroon Ford Taurus with PO Derek Almeida, PO Sonia Yi, and Sergeant Christopher Moran. PO Almeida was driving the Ford Taurus, PO Fernandez was in the front passenger's seat, and PO Yi and Sgt. Moran were in the back seat. PO Fernandez and the other officers observed § 87(2)(b) and § 87(2)(b) who were known drug dealers, driving together in a vehicle. § 87(2)(b) was operating the vehicle and § 87(2)(b) was seated in the front passenger's seat.

Upon observing § 87(2)(b) and § 87(2)(b) the officers followed them in their vehicle, but they did not intend to pull § 87(2)(b) over, nor did they indicate for him to do so. On § 87(2)(b) (PO Fernandez did not remember the cross streets), § 87(2)(b) got into a motor vehicle accident and proceeded west-bound on § 87(2)(b). The officers continued to follow § 87(2)(b) and § 87(2)(b) § 87(2)(b) drove at a high rate of speed, drove on the sidewalk, and crashed into two fences near § 87(2)(b) which brought his vehicle to a stop. At no point while the officers pursued § 87(2)(b) and § 87(2)(b) did they do anything to indicate that they were a police vehicle.

§ 87(2)(b) was trapped in the vehicle, but § 87(2)(b) exited his vehicle and fled on foot. PO Almeida and PO Fernandez pursued § 87(2)(b) on foot. They ran side by side and yelled at § 87(2)(b) to stop. § 87(2)(b) ran onto § 87(2)(b), and at § 87(2)(b) he put one hand on a four-foot tall iron fence, and attempted to use it as leverage to jump over the fence. PO Fernandez was approximately 15 yards behind § 87(2)(b) at this time. § 87(2)(b) stumbled in the process of clearing the fence, falling to the ground, which gave PO Fernandez time to catch up to § 87(2)(b).

§ 87(2)(b) attempted to climb over a tall wooden fence which led into the back yard of the location, but he was unable to climb over the fence. Prior to § 87(2)(b) jumping over the four-foot iron fence, PO Fernandez did not observe any injuries on § 87(2)(b). PO Fernandez observed blood coming from § 87(2)(b)'s hand which was staining the wooden fence which § 87(2)(b) was attempting to climb. This occurred before any officer made physical contact with § 87(2)(b).

PO Fernandez drew his weapon and pointed it at § 87(2)(b). PO Fernandez was on the sidewalk, behind the four-foot iron fence, and § 87(2)(b)'s back was to PO Fernandez. PO Fernandez was not sure if § 87(2)(b) was armed, and he had exhibited reckless and dangerous behavior. PO Fernandez ordered § 87(2)(b) to stop moving and to get down on the ground, and § 87(2)(b) complied.

PO Almeida approached § 87(2)(b) and placed him in handcuffs. § 87(2)(b) did not resist being handcuffed in any way. PO Fernandez did not assist in handcuffing § 87(2)(b). PO Almeida did not strike § 87(2)(b) with an asp, nor did he draw his asp while § 87(2)(b) was on the ground. PO Fernandez did not strike § 87(2)(b) with his gun. No physical force was used against § 87(2)(b) to effect his arrest, aside from PO Fernandez pointing his gun.

§ 87(2)(b) was escorted to the scene of the accident on § 87(2)(b) where § 87(2)(b)'s vehicle came to a stop. PO Fernandez observed a cut to § 87(2)(b)'s hand. PO Fernandez believes that the cut was sustained from jumping over the iron fence, but he did not see "the hand getting ripped open by the fence."

On February 15, 2013, PO Fernandez did not see, observe, or interact with § 87(2)(b). PO Fernandez did not hear any other officers interacting with § 87(2)(b) nor did he learn that § 87(2)(b) was seeking medical attention. PO Fernandez did not know who was working at the desk. PO Fernandez stated that there are no blonde female captains or sergeants who are assigned to his command. PO Fernandez did not transport § 87(2)(b) to Brooklyn Central Booking, nor did he know which officer did this.

Subject Officer: PO ANASTASI TSAKOS

- *PO Anastasios Tsakos is a white male officer who § 87(2)(b) is § 87(2)(b) years old, with black hair and brown eyes.*
- *On February 15, 2013, PO Tsakos worked in uniform with PO Denicker from 7:05AM until 3:40PM. PO Tsakos was assigned to prisoner transport and to marked RMP #3065.*

Memo book: (encl. 17d-e)

PO Tsakos's memo book indicates that on February 15, 2013, at 9:02AM, PO Tsakos was transporting § 87(2)(b) to Brooklyn Central Booking. § 87(2)(b) was listed as an escape risk. At 9:25AM, PO Tsakos arrived at Brooklyn Central Booking. At 10:30AM, § 87(2)(b) refused prints and pictures. At 11:50AM, a second attempt (at prints and pictures) failed. At 12:35PM, § 87(2)(b) requested medical attention, ACR #§ 87(2)(b). At 1:15PM, § 87(2)(b) was transported to § 87(2)(b), ACR #§ 87(2)(b). At 4:00PM, § 87(2)(b) was printed. At 4:15PM, PO Tsakos was relieved by PO Paredes.

CCRB Testimony:

PO Anastasios Tsakos was interviewed at the CCRB on March 10, 2014 (encl. 17f-h). On February 15, 2013, at approximately 8:45AM, PO Tsakos observed § 87(2)(b) in the holding cells of the 83rd Precinct stationhouse. § 87(2)(b) was yelling profanities, but PO Tsakos did not recall specifically what § 87(2)(b) was saying. § 87(2)(b) was stationary and was not doing anything with his body. § 87(2)(b) was alone in the holding cell and he was not handcuffed. Aside from a cut on § 87(2)(b)'s right hand, PO Tsakos did not recall observing any injuries on § 87(2)(b).

The desk sergeant, who PO Tsakos was believed was Sgt. Durant, assigned PO Tsakos the transport of § 87(2)(b). § 87(2)(b) was deemed to be an escape risk. This was because § 87(2)(b) had "a long rap sheet" and he had an extradition warrant to Virginia regarding charges of attempted homicide. PO Tsakos was not sure if there were any other reasons why § 87(2)(b) was deemed an escape risk. PO Tsakos did not recall if § 87(2)(b) had tried to escape police custody.

Inside the holding cell, PO Denicker placed § 87(2)(b) in handcuffs. PO Tsakos kept an eye on § 87(2)(b) from inside the holding cell, but he did not physically assist in handcuffing § 87(2)(b). PO Tsakos did not recall if any other officer entered the holding cell, but he was sure that two additional officers stood outside of the holding cell and watched. Because § 87(2)(b)

was an escape risk, these two officers were assigned to “back up” the transport of § 87(2)(b). PO Tsakos did not remember these officers’ names, but he believed they were in uniform and males. PO Tsakos did not recall if § 87(2)(b) offered any resistance to being handcuffed. PO Tsakos did not recall if § 87(2)(b) was taken to the ground in the holding cell. PO Tsakos did not tell § 87(2)(b) “fuck you,” nor did he hear any officer say this. PO Tsakos did not hear an officer threaten § 87(2)(b) with the use of a taser gun. PO Tsakos did not kick or knee § 87(2)(b) nor did he see any officer do this. PO Tsakos did not recall any physical struggle in the holding cell.

PO Tsakos and PO Denicker escorted § 87(2)(b) from the holding cell to the front desk, made sure all of § 87(2)(b)’s paperwork was in order, and then led § 87(2)(b) to the rear stationhouse doors, and into the marked RMP. § 87(2)(b) entered the RMP under his own power. Neither PO Tsakos nor PO Denicker had to use force to get § 87(2)(b) into the RMP. There was no difficulty in getting § 87(2)(b) from the holding cell to the RMP. The two officers assigned as “back up” followed in a marked RMP behind the RMP which held PO Tsakos, PO Denicker, and § 87(2)(b). PO Tsakos drove the RMP and PO Denicker sat in the front passenger’s seat.

En route to Central Booking, § 87(2)(b) began banging his head on the rear passenger’s side window of the RMP. § 87(2)(b)’s head made contact with the window about 7-8 times. § 87(2)(b) then lay down on his back and began kicking at the rear driver’s side window. PO Tsakos stopped the vehicle somewhere on § 87(2)(b) perhaps at § 87(2)(b), but he did not remember where.

PO Tsakos opened the rear driver’s side door of the RMP, and PO Denicker opened the rear passenger’s side door. The two officers in the trailing RMP exited their vehicle and one stood behind PO Denicker and one stood behind PO Tsakos. Upon opening the door, § 87(2)(b) tried to kick PO Tsakos, but he missed. PO Tsakos grabbed § 87(2)(b)’s legs, and PO Denicker grabbed § 87(2)(b)’s shoulders and held him down against the seat. Aside from holding § 87(2)(b)’s legs, PO Tsakos did not make any further physical contact with § 87(2)(b). At no point did PO Tsakos punch § 87(2)(b) in the head, nor did PO Denicker.

PO Tsakos told § 87(2)(b) that if he did not calm down that ESU would be called, and § 87(2)(b) calmed down. PO Tsakos and PO Denicker returned to the front seats of the RMP and proceeded towards Central Booking. § 87(2)(b) began to slam his head against the partition which divides the front and back seat of the RMP. § 87(2)(b)’s head made contact with the partition approximately 10 times. § 87(2)(b) said that he was going to bruise himself, report that the officers hit him, and then sue in regards. In response, PO Tsakos began filming § 87(2)(b) on his cellphone. § 87(2)(b) stopped hitting his head once PO Tsakos began to film. PO Tsakos did not save the recording. As a result of hitting his head against the window and partition, § 87(2)(b) did sustain a bump on the right side of his forehead. § 87(2)(b) was not bleeding, and PO Tsakos did not observe any other injuries.

Once at Central Booking, § 87(2)(b) refused to be finger printed or have his picture taken. EMS at Central Booking told § 87(2)(b) that he had to go to the hospital in regards to an injury, which PO Tsakos believed was a cut to his left hand, which he had sustained the day before when he jumped over a fence. § 87(2)(b) may have been complaining about an injury to his head. An ambulance was called for § 87(2)(b) and he was transported to § 87(2)(b) via ambulance. PO Denicker rode in the ambulance with § 87(2)(b) and PO Tsakos went to the hospital in the RMP.

At § 87(2)(b), § 87(2)(b) was not cooperative with doctors or nurses and so was sent to a private room. § 87(2)(b) was treated for the cut on his right hand (which PO Tsakos maintained was sustained from the day prior and he did not know why it needed to be treated again) and the bruise on his forehead. § 87(2)(b) was brought back to Brooklyn Central

Booking by PO Tsakos and PO Denicker. § 87(2)(b) was fingerprinted at approximately 4:00PM. PO Tsakos left Central Booking at 4:15PM.

Witness Officer: PO THOMAS DENICKER

- PO Denicker is a white male who § 87(2)(b) is § 87(2)(b) old, with brown hair and brown eyes.
- On February 15, 2013, PO Denicker worked from 7:05AM until 4:55PM. PO Denicker worked in uniform with PO Tsakos, was assigned to 83rd Precinct Sector GH and to marked RMP #3065.

Memo book: (encl. 17i-l)

PO Denicker's memo book indicates that on February 15, 2013, at 9:06AM, PO Denicker was in RMP #3065, transporting § 87(2)(b) who was highly combative to Brooklyn Central Booking. At 9:10AM, § 87(2)(b) removed his seatbelt and repeatedly banged his head against the partition. The vehicle stopped and the seatbelt was re-secured. At 9:25AM, PO Denicker arrived at Brooklyn Central Booking.

At 10:30AM, § 87(2)(b) refused to be fingerprinted or have his photo taken. At 11:50AM, a second attempt to fingerprint and take § 87(2)(b)'s photo was made. At 12:35PM, § 87(2)(b) saw EMS (ACR #§ 87(2)(b)). At 1:12PM, notified 83rd Precinct Desk Sergeant Rosiak that § 87(2)(b) was going to § 87(2)(b). At 1:25PM, § 87(2)(b) was transported from Brooklyn Central Booking to § 87(2)(b). At 2:16PM, PO Denicker spoke to Sgt. Duran, asking for relief.

At 2:58PM, PO Denicker notified desk that § 87(2)(b) was going to be transported back to Brooklyn Central Booking. At 3:14PM, § 87(2)(b) was transported back to Brooklyn Central Booking. At 3:22PM, PO Denicker arrived at Brooklyn Central Booking. At 4:00PM, § 87(2)(b) was successfully fingerprinted. At 4:15PM, PO Denicker was relieved from Brooklyn Central Booking by PO Parades.

CCRB Testimony:

PO Thomas Denicker was interviewed at the CCRB on March 12, 2014 (encl. 17m-o). On February 15, 2013, at approximately 9:06AM, PO Denicker received a call to return to the 83rd Precinct stationhouse for a prisoner transport. Once at the stationhouse, PO Denicker was informed that § 87(2)(b) was a high escape risk, § 87(2)(b) and that § 87(2)(b) had sustained an injury to his hand the day prior. It was one of the sergeants who informed PO Denicker of this, but he did not recall which sergeant. PO Denicker knew that Sgt. Serrano was working that day, but he did not recall any other sergeants who were working at that time.

PO Denicker first noticed § 87(2)(b) while § 87(2)(b) was inside of the main holding cells. PO Denicker stepped into the holding cell which contained only § 87(2)(b) and explained the transport process. PO Denicker told § 87(2)(b) that he would be handcuffed, and upon noting § 87(2)(b)'s injured hand, told § 87(2)(b) that they would use two sets of handcuffs to accommodate § 87(2)(b)'s injury. PO Denicker described the injury as a wrapped hand (PO Denicker did not remember which one), and he believed that § 87(2)(b) had injured it the day before when § 87(2)(b) jumped over a fence. § 87(2)(b) responded by saying, "You're not fucking putting cuffs on me." PO Denicker reported that as soon as he tried to speak with § 87(2)(b) began to yell and scream, although PO Denicker did not recall what exactly

§ 87(2)(b) was saying. Aside from the wrapped hand, PO Denicker did not observe any other injuries to § 87(2)(b) at this time.

PO Denicker and 2-3 other police officers and a sergeant entered the holding cell where § 87(2)(b) was housed. PO Denicker did not recall which 2-3 police officers (PO1-PO3) or which sergeant entered the holding cell with him. PO Denicker believed PO Tsakos was not one of them, because PO Tsakos was retrieving the RMP. PO Denicker grabbed § 87(2)(b) by one of his hands in order to place him in handcuffs. § 87(2)(b) pulled his hand away, “and looked like he was about to start swinging at me.” PO Denicker and the other officers grabbed § 87(2)(b)s arms and took him to the ground and placed § 87(2)(b) in handcuffs. PO Denicker did not recall any more details in regards to the handcuffing process. It took approximately 30 seconds from the time that PO Denicker grabbed § 87(2)(b)s hand to the time § 87(2)(b) was secured in handcuffs.

PO Denicker did not tell § 87(2)(b) “Fuck you,” nor did he ever use profanity towards § 87(2)(b). PO Denicker did not hear any other officer use profanity towards § 87(2)(b). Aside from grabbing § 87(2)(b)s arms and forcing him to the ground, PO Denicker did not use any other force while interacting with § 87(2)(b) in the holding cell. PO Denicker never punched or kicked § 87(2)(b) nor did he see any officer do this.

Once § 87(2)(b) was placed in handcuffs, he refused to stand up, and allowed his body to go completely limp. PO Denicker and PO1-PO2 carried § 87(2)(b) out of the holding cell. Once out of the holding cell, § 87(2)(b) still refused to stand on his power. § 87(2)(b) was carried from outside of the holding cell to the RMP. § 87(2)(b) was placed in the back of the RMP to which PO Denicker and PO Tsakos were assigned.

As soon as the back door to the RMP was shut, § 87(2)(b) kicked the back passenger side window of the RMP a couple of times, although PO Denicker did not recall how many times. PO Denicker grabbed the heel of § 87(2)(b)s shoes and removed them in an attempt to prevent him from kicking the window. § 87(2)(b) attempted to kick PO Denicker as he did this, but § 87(2)(b) missed. Aside from grabbing the heel of § 87(2)(b)s shoe, PO Denicker did not make any further physical contact with § 87(2)(b) at this time, nor did any other officer. PO Denicker sat § 87(2)(b) upright and secured his seatbelt. § 87(2)(b) immediately unfastened his seatbelt. PO Denicker re-secured § 87(2)(b)s seatbelt, and they proceeded to Brooklyn Central Booking. PO Denicker was the passenger, and PO Tsakos was the operator of the RMP. An escorting (back-up) RMP followed closely behind the RMP to which PO Tsakos and PO Denicker were assigned, but PO Denicker did not recall who was in the escorting RMP.

En route to Central Booking, § 87(2)(b) unfastened his seatbelt and began banging his head against the partition of the RMP, 10-20 times. PO Denicker did not observe any injuries to § 87(2)(b) as a result of his hitting his head against the partition at this time. § 87(2)(b) said that he was going to report that the officers had “beat the shit out of him.” In response, the RMP was stopped, and PO Denicker re-secured § 87(2)(b)s seatbelt. PO Tsakos assisted by holding § 87(2)(b)s shoulders back against the seat. PO Denicker did not believe that the officer(s) in the escorting RMP exited the RMP. Aside from PO Denicker touching § 87(2)(b)s chest while re-securing the seatbelt, PO Denicker did not make physical contact with § 87(2)(b). PO Denicker did not punch § 87(2)(b) nor did he see any officer do this.

PO Denicker, PO Tsakos, and § 87(2)(b) proceeded to Central Booking. § 87(2)(b) again began “banging” his head on the partition of the RMP. PO Denicker pulled out his cellphone, and acted as if he were going to record § 87(2)(b) hitting his own head against the partition of the RMP, and § 87(2)(b) stopped.

PO Denicker arrived at Brooklyn Central Booking. § 87(2)(b) refused to get out of the RMP, and refused to walk into Central Booking under his own power. PO Denicker removed § 87(2)(b) from the RMP and carried him into Central Booking. PO Denicker spoke with the

supervisor at Central Booking and informed him that § 87(2)(b) was uncooperative, combative, and a high escape risk. A separate holding cell was made available for § 87(2)(b). At this time, PO Denicker did not observe any injuries to § 87(2)(b) aside from his wrapped hand. The injured hand appeared no different at this point than it had when PO Denicker first observed it.

The whole time at Central Booking § 87(2)(b) was yelling and screaming, although PO Denicker did not recall if § 87(2)(b) complained of an injury or requested medical attention. An EMS worker requested to speak with § 87(2)(b) and the EMT met privately with § 87(2)(b). The EMT determined that § 87(2)(b) needed to receive medical treatment for his hand and because § 87(2)(b) complained of a bump on his head. An ambulance was called for § 87(2)(b) and § 87(2)(b) was transported via ambulance to § 87(2)(b). PO Denicker rode in the ambulance with § 87(2)(b). PO Tsakos drove the RMP to the hospital. At the hospital, a doctor informed PO Denicker that there was nothing wrong with § 87(2)(b).

Upon being discharged from the hospital, § 87(2)(b) refused to walk under his own power. Two EMS workers and PO Denicker carried § 87(2)(b) to the RMP, and § 87(2)(b) was transported back to Brooklyn Central Booking. PO Denicker and PO Tsakos were the only officers in the RMP with § 87(2)(b). At Central Booking, an officer there convinced § 87(2)(b) to cooperate in the fingerprinting process, and § 87(2)(b) complied. PO Denicker was relieved from his duty at Central Booking.

Other officers interviewed

Sgt. Anna Serrano was interviewed at the CCRB on October 23, 2013 (encl. 19a-b). Sgt. Serrano is a Hispanic female who § 87(2)(b) is § 87(2)(b) old, with brown hair and brown eyes. On February 15, 2013, Sgt. Serrano worked in uniform as the patrol supervisor from 6:55AM until 3:52PM. Sgt. Serrano worked alone and was in marked RMP #5489. Sgt. Serrano does not have any memo book entries regarding this incident. On February 15, 2013, Sgt. Serrano was at the 83rd Precinct stationhouse at 6:55AM. She did not observe § 87(2)(b) in the stationhouse at that time. Sgt. Serrano conducted roll call, sent out the officers whom she supervises, and then left the stationhouse for the duration of her tour. Sgt. Serrano did not recall which officer was assigned to the desk on February 15, 2013, and she did not have it documented in her memo book. Sgt. Serrano did not recall observing § 87(2)(b) at any point on February 15, 2013. Sgt. Serrano said there are no female officers in her command who typically work the desk.

Sgt. Jennifer Lavelle was interviewed at the CCRB on December 3, 2013 (encl. 21a-b). Sgt. Lavelle is a white female who § 87(2)(b) is § 87(2)(b) old, with brown hair and brown eyes. On February 15, 2013, Sgt. Lavelle worked in uniform from 2:50PM until 11:47PM at the desk assignment. Sgt. Lavelle did not have a partner, nor was she assigned a motor vehicle. Sgt. Lavelle did not have an independent recollection of the incident. Sgt. Lavelle did not recall observing § 87(2)(b) on February 15, 2013, nor did she remember any prisoner making a disturbance on that date. Sgt. Lavelle was presented a photograph of § 87(2)(b) and she did not recognize him. Sgt. Lavelle was presented a copy of the command log, specifically, the entry regarding § 87(2)(b). Sgt. Lavelle did not make the entry, nor did she recognize the handwriting of the officer who made the entry.

Sgt. Annalisa Rosiak was interviewed at the CCRB on April 2, 2014 (encl. 27a-d). Sgt. Rosiak is a white female who § 87(2)(b) is § 87(2)(b) old, with brown hair and brown eyes. On February 15, 2013, Sgt. Rosiak worked alone, in uniform, from 6:55AM until 3:52PM. Sgt. Rosiak was assigned as the Training Sergeant which is an administrative position within the stationhouse. Sgt. Rosiak's memo book indicated that on February 15, 2013, she was assigned to administrative training. At 7:30AM, she was present for duty. At 3:52PM, Sgt. Rosiak went end of tour. On February 15, 2013, Sgt. Rosiak was performing administrative

Medical records from § 87(2)(b), such as the ACR, were not available to the CCRB because § 87(2)(b) was treated under the false name which he provided to police, § 87(2)(b). The HIPAA forms § 87(2)(b) signed were filled out for the records of § 87(2)(b).

NYPD Documents

MEMO BOOKS (encl. 26a-27c)

A CCRB Complaint Tracking System search for white female sergeants who are assigned to the 83rd Precinct revealed that there are three such sergeants: Sgt. Tara King, Sgt. Jennifer Lavelle, and Sgt. Annalisa Rosiak. Sgt. King's memo book indicates that she was RDO on February 15, 2013. Sgt. Rosiak's memo book indicates that on February 15, 2013, she was doing training from 6:55AM until 3:52PM, and that she was RDO on February 16, 2013. Sgt. Lavelle was interviewed by the CCRB, and her memo book is summarized in the 'Other officers interviewed' section.

MEDICAL TREATMENT OF PRISONER REPORTS (encl. 29a-d)

Three Medical Treatment of Prisoner Reports were prepared regarding § 87(2)(b). On § 87(2)(b), § 87(2)(b) was removed to § 87(2)(b) by EMS for a laceration to his right hand. § 87(2)(b) was classified as an EDP. PO Rubin was the escorting officer. On § 87(2)(b), § 87(2)(b) was complaining of pain on left shoulders, right hand, both legs and head, but there were no physical findings. § 87(2)(b) was transported to § 87(2)(b) at 2:00PM, and PO Tsakos was the escorting officer. On § 87(2)(b), § 87(2)(b) was transported to § 87(2)(b) at 2:55PM for treatment to a cut on § 87(2)(b)'s right hand, and the escorting officer was PO Fernandez.

COMMAND LOG (encl. 30a-c2)

The command log indicates that § 87(2)(b) was arrested by PO Almeida on February 14, 2013, at 10:25AM. § 87(2)(b) had an injury to his right hand. Written semi-illegibly in the margin next to the entry regarding § 87(2)(b)'s arrest entry are notes "PO Rubin," "PO Artale," "To § 87(2)(b) § 87(2)(b)." A note in the margin appears to read that PO Denicker and PO Tsakos went to Brooklyn Central Booking on February 15, 2013, at 9:00AM.

83rd PRECINCT ROLL CALL (encl. 32a-d3)

The Roll Call from Tour 1 of February 15, 2013, indicates that Sgt. Gurudeo Ramoutar was assigned to the desk. Sgt. Ramoutar is a Hispanic male. The Roll Call from Tour 2 of February 15, 2013, indicates that Sgt. Michael Duran was assigned to the desk. Sgt. Duran is a white male.

*The 83rd Precinct was unable to locate the Prisoner Holding Pen Roster from February 15, 2013.

Other Evidence

PO Fernandez provided five pages of photographs to the CCRB which he said he took on February 14, 2013 (encl. 5a-e). Page 1 of the photographs depicts an iron gate which appears to have been damaged and has fallen to the ground. Page 2 of the photographs depicts damage to a concrete sidewalk. Page 3 of the photographs depicts a damaged stair and banister of a residential brownstone building. Page 4 of the photographs depicts a short metal gate which surrounds a residential yard. The short metal gate has decorative spikes along the top edge. Page 5 of the photographs depicts a tall wooden gate on which a large red stain appears.

Arrest for Incident and Disposition (encl. 33r-t)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings (encl. 34a)

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of February 26, 2014, with regard to the incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. 4a).

Subject Officers CCRB History

- PO Derek Almeida has been a member of the service for 6 years and there are five substantiated CCRB allegations against him. (encl. 2a-b).
 - In CCRB case #201115628 a ‘vehicle search’ and a ‘search of a person’ allegation were substantiated with recommended charges. The NYPD declined to prosecute.
 - In CCRB case #201201695 a ‘stop’ allegation was substantiated with recommended charges. The NYPD has yet to determine what if any penalty PO Almeida will face.
 - In CCRB case #201206355 a ‘search of a person’ and a ‘stop’ allegation were substantiated with no recommendation. No disciplinary action was taken by the NYPD due to the Statute of Limitations.
- PO Steve Fernandez has been a member of the service for 13 years and there are two substantiated CCRB allegations against him (encl. 3a).
 - In CCRB case #201114924 a ‘stop’ and a ‘search of a person’ allegation were substantiated with recommended charges, and PO Fernandez received command discipline B.
- PO Anastasios Tsakos has been a member of the service for 7 years and there are no substantiated CCRB allegations against him (encl. 3b).
- PO Thomas Denicker has been a member of the service for 2 years and there are no substantiated CCRB allegations against him (encl. 3c).

Conclusion

Identification of Subject Officers

PO Almeida and PO Fernandez acknowledged interacting with § 87(2)(b) § 87(2)(g)

PO Tsakos and PO Dennicker acknowledged transporting § 87(2)(b) from the 83rd Precinct stationhouse to Brooklyn Central Booking on February 15, 2013. § 87(2)(b) reported that the driver of the vehicle, which both PO Tsakos and PO Denicker reported was PO Tsakos, was the officer who used force against him en route to Brooklyn Central Booking. § 87(2)(g)

§ 87(2)(b) reported that PO Denicker, PO Tsakos, and three unidentified officers, PO1, PO4, and PO5, entered the holding cell. PO1 was a white female, who appeared to be a sergeant, 5'6" tall, slim, with long blonde hair (PO1 was at the desk on February 16, 2013, as well). PO4 and PO5 were males, but § 87(2)(b) could not recall anything further about their descriptions. One of these officers (PO Denicker, PO Tsakos, PO1, PO4, or PO5) said, "Fuck you," but § 87(2)(b) did not recall which one. PO1 threatened to use the Taser gun against § 87(2)(b)

A CTS search of white female sergeants who are assigned to the 83rd Precinct indicated that there are three such sergeants: Sgt. Tara King, Sgt. Jennifer Lavelle, and Sgt. Annalisa Rosiak. None of these sergeants have blonde hair. All of these sergeants were interviewed, and none of them recalled § 87(2)(b). Sgt. King was RDO on February 16, 2013. Sgt. Lavelle was assigned to the desk on February 15 and February 16 of 2013, but she did not have any recollection of § 87(2)(b) and she reported that she did not make any entries in the command log regarding § 87(2)(b). Sgt. Rosiak was RDO on February 16 of 2013.

PO Almeida and PO Fernandez did not see any officer interact with § 87(2)(b) on February 15, 2013, nor did they recall who was at the desk that day. PO Almeida and PO Fernandez said that there are no blonde female officers that they are aware of that work at the 83rd Precinct.

The 83rd Precinct was unable to locate the prisoner holding pen roster for February 15, 2013. PO Almeida, PO Fernandez, PO Rubin, and PO Artale all denied interacting with § 87(2)(b) on February 15, 2013.

Neither PO Denicker nor PO Tsakos was able to identify any other officers who were present at the 83rd Precinct stationhouse while § 87(2)(b) was in the holding cell, and both PO Denicker and PO Tsakos denied that any officer spoke discourteously to § 87(2)(b) or threatened § 87(2)(b) with the use of force.

Investigative Findings and Recommendations

Allegation A: Force—On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Steve Fernandez pointed his gun at § 87(2)(b)

It is undisputed that § 87(2)(b) crashed his vehicle into a gate, causing it to come to a halt, and that § 87(2)(b) immediately got out of his vehicle and ran. § 87(2)(b) reported that as he was running, he realized that it was police officers and not civilians who were chasing him, and so he stopped, put his hands in the air, and this is when he noticed PO Fernandez was pointing a gun at him. PO Almeida, PO Fernandez, and the § 87(2)(b) witness all testified that § 87(2)(b) stopped running when he jumped over a small gate into a residential yard and was unable to climb a wooden fence. PO Fernandez reported that at this point, when § 87(2)(b) was trapped in the residential yard, he pointed his gun at § 87(2)(b). This was corroborated by the

§ 87(2)(b) witness. PO Almeida did not recall PO Fernandez ever pointing his gun at § 87(2)(b). PO Fernandez pointed his gun at § 87(2)(b) because he was not sure if § 87(2)(b) was armed and § 87(2)(b) had exhibited reckless and dangerous behavior.

Police Department v. Gliner, OATH index No. 955/00 (September 6, 2000) states that an officer may draw his firearm and point it at another person so long as he has reasonable fear for his own or another officer's safety (encl. 1a-u).

§ 87(2)(g)
It is therefore recommended that **Allegation A** be **Exonerated**.

Allegation B: Force—On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Derek Almeida struck § 87(2)(b) with an asp.

Allegation C: Force—On February 14, 2013, in the vicinity of § 87(2)(b) in Brooklyn, PO Steve Fernandez struck § 87(2)(b) with a gun.

It is undisputed that § 87(2)(b) crashed his vehicle into a gate, causing it to come to a halt, and that § 87(2)(b) immediately got out of his vehicle and ran. § 87(2)(b) reported that as he was running, he realized that it was police officers and not civilians who were chasing him, and so he stopped and put his hands in the air. § 87(2)(b) reported that he and § 87(2)(b) knew it was police officers who were following them before § 87(2)(b) crashed his vehicle. § 87(2)(b) said that after he stopped on his own accord, he complied with instructions to get to the ground, and that is when PO Almeida struck him in the back with an asp two times.

PO Almeida and PO Fernandez both testified that § 87(2)(b) only stopped running when he jumped over a small gate into a residential yard and was unable to climb a wooden fence. Both officers denied using an asp against § 87(2)(b) and the § 87(2)(b) witness denied seeing an officer use an asp against § 87(2)(b).

§ 87(2)(b) reported that after being struck with the asp, he ran into a residential yard, and attempted to climb a wooden fence, but he was unable to do so. § 87(2)(b) said that at this point PO Fernandez approached him and attempted to strike him in the head with the butt of his gun, but § 87(2)(b) blocked the strike with his right hand, causing a laceration to his right palm. Medical records and police documentation confirm that § 87(2)(b) sustained a laceration to his right hand.

PO Almeida, PO Fernandez, and the § 87(2)(b) witness all testified that PO Fernandez never struck § 87(2)(b) with the butt of a gun, and that § 87(2)(b) injured himself while jumping over a small gate. Photos provided by PO Almeida of the small gate confirm that the gate was metal and had pointed tops § 87(2)(g)

§ 87(2)(g)
It is therefore recommended that **Allegations B and C** be closed as **Unfounded**.

Allegation D: Discourtesy-- On February 15, 2013, at the 83rd Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

Allegation E: Abuse of Authority—On February 15, 2013, at the 83rd Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **Officer(s) Unidentified**.

Allegation F: Force—On February 15, 2013, at the 83rd Precinct stationhouse, PO Anastasi Tsakos used physical force against § 87(2)(b)

Allegation G: Force—On February 15, 2013, at the 83rd Precinct stationhouse, PO Thomas Denicker used physical force against § 87(2)(b)

Allegation H: Force—On February 15, 2013, at the 83rd Precinct stationhouse, officers used physical force against § 87(2)(b)

§ 87(2)(b) reported that on the morning of February 15, 2013, while in the holding cell of the 83rd Precinct, PO Tsakos, PO Denicker, PO4, and PO5 brought § 87(2)(b) to the ground. § 87(2)(b) was resisting, moving his shoulders and legs. PO Tsakos, PO Denicker, PO4, and PO5 kicked and kned § 87(2)(b) on his back while he was lying on the ground. § 87(2)(b) did not recall who kicked him or how many times, because § 87(2)(b) was “too hyper” to pay attention.

PO Almeida, PO Fernandez, PO Rubin, PO Artale, Sgt. Serrano, and Sgt. Lavelle all denied interacting with § 87(2)(b) on February 15, 2013, and all denied observing any officer use force against § 87(2)(b) on February 15, 2013. PO Denicker and PO Tsakos were present for the transport of § 87(2)(b) from the holding cell to Brooklyn Central Booking, but neither officer could recall which other officers were present. PO Denicker said that § 87(2)(b) was not cooperative in the holding cell, and that § 87(2)(b) was taken to the ground inside of the holding cell to handcuff him, but PO Denicker denied that he or any officer kicked or punched § 87(2)(b). PO Tsakos said that he did not kick or kneed § 87(2)(b) nor did he see any officer do this, nor did PO Tsakos recall any physical struggle in the holding cell.

§ 87(2)(b) reported that at some point during the altercation in the holding cell, the stitches in his hand reopened, he sustained a gash on his head, bruises on his back, and his arms were swollen. § 87(2)(b) did not know how specifically he received each injury, but he knows he received them as a result of the struggle in the holding cell.

§ 87(2)(g)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

It is therefore recommended that **Allegation F, G, and H** be closed as **Unfounded**.

Allegation I: Force—On February 15, 2013, en route to Brooklyn Central Booking, PO Anastasi Tsakos used physical force against § 87(2)(b)

§ 87(2)(b) reported that en route to Brooklyn Central Booking on February 15, 2013, while handcuffed and legs shackled in the back seat of an RMP, § 87(2)(b) was screaming, banging his head against something, and “going crazy.” PO3 (described as a white male, 6’0” tall, with a slim build, with short hair, and in his mid to late 30s) opened the door and punched

§ 87(2)(b) two times in the head.

PO Tsakos and PO Denicker both reported that § 87(2)(b) was hitting his own head against the partition in the back of the RMP while en route to Brooklyn Central Booking, and that the RMP was stopped in order to address § 87(2)(b)'s behavior. PO Tsakos and PO Denicker both denied that either one of them punched § 87(2)(b) in the head.

§ 87(2)(g) § 87(2)(a) PHL § 18(6)

§ 87(2)(g) It is therefore

recommended that **Allegation I** be closed as **Unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date